

Km. Priyanshi (Minor) vs Kurmanchal Nagar Sehkari Bank Limited on 3 May, 2021

Equivalent citations: AIRONLINE 2021 UTR 218

Author: Sharad Kumar Sharma

Bench: Sharad Kumar Sharma

HIGH COURT OF UTTARAKHAND
AT NAINITAL
Writ Petition No.877 of 2021 (M/S)

Km. Priyanshi (Minor)

.....Petitioner

Vs.

Kurmanchal Nagar Sehkari Bank Limited
and another

...Respondents

Advocate: Mr. Dushyant Mainali, Advocate for the petitioner.
Mr. Alok Mehra, Advocate for the respondents.

Hon'ble Sharad Kumar Sharma, J.

The brief fact, which engages consideration in the present writ petition is that the petitioner is a daughter of Mr. Kranti Kumar, who happens to be the biological father. On account of certain matrimonial discord with the guardian of present petitioner, who is minor, a proceedings under Section 13-B of the Hindu Marriage Act, by way of Case No.257 of 2013, was decided by the judgment and decree dated 16.07.2014, whereby a permanent alimony under Section 25 of the Hindu Marriage Act; to the tune of Rs.5.00 lacs. was awarded in favour of the guardian of the present petitioner i.e. the deponent herein i.e. Dolly Aray. Subsequent to the grant of decree of divorce on 16.07.2014, the guardian of the present petitioner solemnized, her second marriage on 31.01.2015, with one Mr. Harish Tiwari and got the marriage registered with Registrar of Marriage on 06.02.2015.

2. The fact which has been reflected from the record of the writ petition are that subsequent to the second marriage of the guardian of the petitioner i.e. Dolly Aray with Mr. Harish Tiwari, a registered adoption deed was executed by Mr. Harish Tiwari, which was duly endorsed by the biological father of the petitioner i.e. Mr. Kranti Kumar on 06.04.2016 and it was registered before the Registrar and consequent thereto, as a result of adoption deed, the petitioner became the daughter of Mr. Harish Tiwari, the second husband of the guardian of the petitioner i.e. Mrs. Dolly.

3. The fact which reflects is that the permanent alimony, which was granted by the family to the tune

of Rs.5.00 lacs., by the Family Court while granting decree of divorce on 16.07.2014, was invested with the bank/respondent no.1 by way of FDR No.3703/1 bearing Serial No.0197157. In the said FDR the name of biological father Mr. Kranti Kumar, has been shown as against the name of the present petitioner. But in view of the registered adoption deed of 06.04.2016, the petitioner's guardian contends that she had moved an application on 26.12.2017, before the respondent/bank to change the name of the father from Kranti Kumar, the biological father to Mr. Harish Kumar, the adopted father in the FDR, which was made with the bank. But the said change has not yet been made, accordingly the present petition.

4. Heard the counsel for the parties.

5. Looking to the apparent registered adoption deed, which was registered on 06.04.2016 and was also duly endorsed by the biological father Mr. Kranti Kumar, in fact, it could be the logically inferred that Kranti Kumar, the biological father, very candidly has accepted, the factum of second marriage, the factum of the adoption of the petitioner by Mr. Harish Tiwari and as such, the change in name of the parentage in the FDR, was a consequence which was to flow as a result of the registered adoption deed of 06.04.2016. In fact, there was no legal impediment as such which is apparent on the face of the record, which could have entailed the bank to refrain from making the necessary changes in the description of the father's name, as well as the address which has been given in the FDR, as detailed above.

6. Hence, in these eventualities, this writ petition is being disposed of with the direction that the petitioner to file an appropriate application before the respondents/bank through her natural guardian, along with Xerox copy of the registered adoption deed for making the necessary changes in the father's name as well as the address, in the FDR No.3703/1 bearing Serial No.10197157. In case if the petitioner files an appropriate application as directed above, within a period of three weeks from today, respondent/bank would take necessary steps to make the changes within two weeks thereafter.

7. Subject to the above directions, the writ petition stands disposed of.

(Sharad Kumar Sharma, J.) 03.05.2021 Arti